



FIRM INTAKE REVIEW

Organized for attorney review

WORKER

Marcus Rivera

EMPLOYER

Pacific Ridge Distribution LLC

EMPLOYMENT PERIOD

March 2022 – January 2026 (3 years, 10 months)

11

RECORDS

6

TIMELINE EVENTS

Jul 10, 2026

PREPARED

How to read this file

Source-linked » click to open the cited document
Document on file named record, included in Source Records
Worker-stated from the worker's own account

0 of 9 organized items link to a source document.

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1. Review Snapshot

The worker reports working for Pacific Ridge Distribution LLC from approximately March 2022 – January 2026 (3 years, 10 months).

The current record set includes an HR complaint and documented response, a written warning, payroll records, a termination letter and final paystub.

2. Why This Intake Requires Review

Records document the following sequence: March – July 2023: missed meal-break log entries across 14 documented shifts; November 26, 2025: formal hr complaint filed — wage irregularities and timekeeping; December 7, 2025: written warning issued — "attitude and conduct"; January 10, 2026: employment terminated — stated reason: performance deficiency. The sequence and timing are organized here for attorney review. Firm review is needed to determine whether these events are related and what the underlying records establish.

2B. Extracted From Documents

Confirmed from documents

HR complaint topic: Unpaid overtime and missed meal-break compensation
Complaint date: November 26, 2025
HR response: HR acknowledged receipt same day; written warning issued 11 days later
Warning states: "Attitude and conduct concerns; failure to follow supervisor direction"
Warning date: December 7, 2025
Termination states: "Ongoing performance deficiency" — not corroborated by prior reviews
Termination date: January 10, 2026

Timing from complaint date

11d

HR RESPONSE

34d

TERMINATION

Key document language

HR Communications — Rivera WrittenWarning Dec2025

"Employee has demonstrated a pattern of attitude and conduct concerns inconsistent with company expectations."

Termination Records — Rivera TerminationLetter Jan2026

“After careful consideration, the Company has determined that your continued employment is no longer consistent with our performance standards.”

HR Communications — Rivera HR Complaint Nov2025

“I am formally requesting a payroll audit covering the period October 2022 to present, specifically regarding overtime calculation and meal-break compensation.”

Overtime hours recorded without matching overtime rate — payroll review required.

3. Intake Overview

Employer:	Pacific Ridge Distribution LLC
Employment Dates:	March 2022 – January 2026 (3 years, 10 months)
Key People Involved:	Shift supervisor Derek Howell; HR Manager Sandra Fitch; Regional Director (unnamed in docs)
Employment Status:	Employment ended
Submission Type:	Participating Firm Review
Access Level:	Full materials
Current Status:	Under Firm Review

4. Sequence for Attorney Review

DATE	EVENT	SOURCE
Q4 2022 – Q1 2023	Overtime hours recorded without matching pay rate	Worker-stated
March – July 2023	Missed meal-break log entries across 14 documented shifts	Worker-stated
November 26, 2025	Formal HR complaint filed — wage irregularities and timekeeping	Rivera HR Complaint Nov2025
December 7, 2025	Written warning issued — "attitude and conduct" [11 days after complaint]	Rivera WrittenWarning Dec2025
January 10, 2026	Employment terminated — stated reason: performance deficiency [1 month after complaint]	Rivera FinalPayStub Jan2026
January 2026	Final pay period — discrepancy documented [1 month after complaint]	Rivera FinalPayStub Jan2026

5. Priority Questions

- What specific concern did the worker report to Human Resources?
- What explanation, if any, did the employer provide in response?
- Did the worker's schedule, duties, or treatment change after the complaint was filed?
- What reason does the written warning give, and when was it issued relative to the complaint?
- Do the payroll records show a measurable discrepancy in hours, overtime, or compensation?

- What reason does the termination letter provide?

6. Supporting Records

Priority Review Records

- 1. Rivera HR Complaint Nov2025 — HR Communications
- 2. Rivera WrittenWarning Dec2025 — HR Communications
- 3. Rivera TerminationLetter Jan2026 — Termination Records
- 4. Rivera EmployeeHandbook PTO excerpt — HR Communications

Supporting Records

- Rivera PayStub Oct2022 — Payroll Records
- Rivera PayStub Dec2022 — Payroll Records
- Rivera PayStub Feb2023 — Payroll Records
- Rivera FinalPayStub Jan2026 — Payroll Records
- Rivera TimeRecords Spring2023 — Time Records
- Rivera TimeRecords Q3 2023 — Time Records
- Rivera PersonalScheduleNotes 2023 — Time Records

7. Documented vs. Worker-Reported

Compensation or overtime discrepancy

-> Payroll records available — discrepancy not yet calculated

Meal-break or timekeeping issue

-> Worker reported only

HR complaint occurred

-> Document available

Written warning issued

-> Document available — content review required

Termination documented

-> Termination record available — stated reason included for attorney review

8. Items Requiring Confirmation

- Prior annual performance reviews (2022–2024) not in current record set — may be relevant to attorney evaluation
- Coworker corroboration not yet documented

9. Questions That May Help Complete the Intake

- Pay records show overtime hours without a matching overtime rate. Do you have additional paystubs or wage statements for those periods?
- No coworker statement is in the records. Is there anyone who saw what happened who could share what they observed?

10. Worker Context

Marcus says he raised the overtime issue informally with his shift supervisor in early 2023 and was told "that's just how scheduling works here." He kept personal copies of his schedule on his phone after noticing discrepancies. His HR complaint in November 2025 was the first formal escalation. He was called into HR the following week and told his "attitude had become a concern."

11. Firm Review Options

Current items requiring confirmation: 2

Priority records available for review: 4 of 11

Additional records that may help complete this review

- Timecards or time records for the full employment period
- Wage statements for any periods not covered by uploaded paystubs
- Applicable employer policies (attendance, discipline, accommodation)
- Any communications explaining or leading to the termination decision

Actions available: Review priority documents · Request clarification · Request additional records · Schedule consultation · Accept intake · Decline intake

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